

CITY OF CHEYENNE – CITY COUNCIL AGENDA ITEM SHEET

DATE OF COUNCIL MEETING: July 8, 2013

TYPE OF DOCUMENT: (☐ ORDINANCE) (☒ RESOLUTION) (☐ PRELIMINARY PLAT/
PRELIM PUD ZONE CHANGE) (☐ LEASE/CONTRACT) (☐ CHANGEORDER/CONTRACT
MODIFICATION) (☐ CONSIDER BID) (☐ APPLICATIONS/LICENSES/PERMITS)
(☐ APPOINTMENTS) (☐ ANNOUNCEMENTS/REPORTS/MOTIONS) (☐ OTHER)

SPONSOR: (ORDINANCE OR RESOLUTION) Sean Allen

EXACT WORDING FOR AGENDA: A Resolution authorizing the Mayor and the City Clerk to sign a Final Plat for Teton Business Park, a replat of Lots 1 thru 4, inclusive, Block One, Classic Subdivision, Cheyenne, Wyoming (located at the northeast corner of the intersection of Westland and Old Happy Jack Roads).

(1% Sales Tax Funding/Years) N/A

(Other Funding _____)

CONTACT PERSON: Brett Walker PHONE: 637-6305 DEPT: Development Office

OTHER CITY DEPTS AFFECTED: N/A

OTHER GOV'T AGENCIES AFFECTED: N/A

FINANCIAL IMPACT PROPOSED OR CONDITIONS WHICH AFFECT CITY: N/A

CONTRACT TERM: N/A STARTING DATE: N/A

	YES	NO	N/A
Is funding budgeted?	()	()	(<u>X</u>)
Were Bids called for?	()	()	(<u>X</u>)
Affected parties notified of Council procedure and dates?	(<u>X</u>)	()	()
Has bond, insurance or other security been arranged?	()	()	(<u>X</u>)
Have legal descriptions been checked?	(<u>X</u>)	()	()

Agenda Item approved / reviewed by :

Risk Mgr (☐) City Attorney (☐) Dept. Head (☒)

General Comments: The Cheyenne Planning Commission recommended approval of the above described Expedited Preliminary Plat, advancing the Final Plat to the Governing Body, by a vote of 4 to 0 at their meeting on July 1, 2013. See the attached Staff Report for more definitive information.

Submitted by: Brandon Cammarata Title: Planning & Dev Dir. Date: July 3, 2013

UPON PASSAGE OF THE AGENDA ITEM, COPIES SHOULD BE SENT TO:

City Clerk's Office

Engineering Tech Branch

Development Office

Building Safety Office

STAFF REPORT

Teton Business Park

Summation

Expedited Subdivision Plat Process

CASE NUMBER(s): UDC-13-00209

FILE CODE: TEBP-FP

PREPARED BY: Brett Walker

MEETING July 1, 2013 – Planning Commission

DATES: July 8, 2013 – City Council

REQUIRED DOCUMENTS SUBMISSION: The following required documents have been submitted and reviewed by staff.

- Preliminary Plat Map
- Final Plat Map
- Revised Final Plat Map (6/24/2013)
- Complete Application

RECOMMENDATION: The Planning and Development office recommends approval of the Expedited Preliminary Plat, advancing the Final Plat to the Governing Body.

STAFF REPORT UPDATE (7/2/2013): At its regular meeting Monday, July 1, 2013, the City of Cheyenne Planning Commission recommended approval of the above described Expedited Preliminary Plat by a vote of 4 to 0, advancing the Final Plat to the Governing Body.

STAFF REPORT

Teton Business Park

Expedited Subdivision Plat Process

CASE NUMBER(s): UDC-13-00209

FILE CODE: TEBP-FP

PREPARED BY: Brett Walker

MEETING DATES: July 1, 2013 – Planning Commission
July 8, 2013 – City Council

OWNER: Profile Properties, LLC
P.O. Box 2836
Cheyenne, WY 82003
307-632-2710

AGENT: Casey Palma
Steil Surveying Services
1102 W. 19th Street
Cheyenne, Wyoming 82001
307-637-6017

PROJECT: Teton Business Park

WORK DESCRIPTIONS: Teton Business Park

LOCATION:

- (1) Legal Description: a replat of Lots 1 thru 4, inclusive Classic Subdivision, Cheyenne, Wyoming
- (2) Location: the northeast corner of the intersection of Westland and Old Happy Jack Roads
- (3) Address: Vacant

SIZE: Total site: 6.80 acres

CURRENT ZONING: LI Light Industrial District

PROPOSED ZONING: LI Light Industrial District

EXISTING LAND USE: Vacant

PROPOSED LAND USE: Warehousing/Business Park

Expedited Plat/UDC-13-00209/TEBP-FP

SURROUNDING LAND USES:

SURROUNDING	LAND USE(S)	ZONING	ANNEXATION STATUS
North	Crow Creek	LI	City
South	City Maintenance Facility	LI	City
East	Railroad	LI	City/County
West	Low-Density Residential	LI	City/County

EXPEDITED REVIEW: This plat is being pursued as an expedited application. An expedited review process is a concurrent preliminary and final plat. A project may be eligible for an expedited review when the proposal contains no significant planning, design and engineering issues. In other words proposals that meet all applicable regulations and generally meet the review criteria for preliminary and final plat may be eligible for the concurrent preliminary and final plat process.

Staff recommends allowing the plat to proceed as an expedited application.

EXECUTIVE SUMMARY: The proposed subdivision is comprised of approximately 6.8 acres located north of Old Happy Jack Road, between Westland Road and the BNSF Railroad. It is a replat of all the lots created when Classic Subdivision was platted. Classic Subdivision also included a replat of portions of Old Happy Jack Road and Westland Road, which are not included here. The site is presently vacant but a small portion was once used as a residence, though the house and outbuildings have long been removed. The proposal is to leave the current zoning of LI in place. The site has areas of elevation but general slopes from the southwest to the northeast. The project will utilize the public water and sewer system and Fire Station #1 is .7 miles from this site. The proximity of the site to the urbanized area, adjacent subdivisions, and other uses makes the development an appropriate use of the site.

PLAT DATA: In reviewing, providing comments, and making recommendations and decisions on a proposed preliminary plat, the Staff, Planning Commission and City Council shall use the following criteria:

PLANCHEYENNE. *The application is in accordance with the development policies and physical patterns identified in the PlanCheyenne.*

This application is in accordance with PlanCheyenne. In particular, it dovetails with Policy 1.4.a: Infill Opportunities and is located at the north end of an area identified as a Community/Regional Activity Center (see attached exhibit). PlanCheyenne recommends a Future Land Use Category of Mixed-Use

Expedited Plat/UDC-13-00209/TEBP-FP

Employment Campus for this area. The Mixed-Use Employment Campus category is intended to promote a range of land uses, with primarily office and light industry designed in a business campus setting. The campus should include open space, parks and plazas, and pedestrian walkways. Retail and services are an important component to creating a functional business campus. The current and proposed zone of LI Light Industrial Zone is an applicable underlying zone district.

This area was also contemplated during the MPO's Missile Drive Corridor Plan, which was completed in 2010 (<http://www.plancheyenne.org/missile-drive-corridor-plan/>).

PLANNING. *The application reflects sound planning and urban design principles with respect to existing and potential future development in the vicinity, including consideration of current and future streets, open spaces, blocks and lots, and public utilities or facilities.*

With an elevated track to the east and the Crow Creek Floodplain to the north, this site will rely entirely on Westland and Old Happy Jack Roads for access. Westland Road is classified as a collector, while Old Happy Jack Road is classified as local. No new ROW is proposed. However, its close proximity to I-25 will provide an excellent location for those businesses that need immediate access to the interstate. At over 5 acres, the project requires the construction of an internal access way to provide for adequate circulation. These access ways will look and function like a street.

STANDARDS. *Division of land meets the purposes, intent, and all applicable standards in Article 4.*

Community Facility Fees in the amount of \$7,480.00 were paid in 2010 when the area was platted as Classic Subdivision. As the fees have not changed in the last 3 years, no payment is required as it would be duplicative (*ref. 4.2.5.a.1, UDC*).

No new Right-of-Way is being proposed with this application. However, any single block, lot or development site larger than 5 acres shall provide a system of internal access ways to establish connectivity and mobility within the site and coordinate with streets and blocks adjacent to the site (*ref. Article 6, Section 6.2.3.b., UDC*). The Internal access ways will be built to resemble the Commercial/Industrial street design described in section 4.3.4, UDC (page 4-18).

While PlanCheyenne certainly recommends some open space in the context of a Mixed-Use Employment Campus, there are no Open Space requirements for a site in the LI district (*ref., Table 4-15, UDC*).

PHASING. *Any phasing proposed in the application is clearly indicated and demonstrates a logical and well-planned development pattern. This may include consideration of amenities and public facilities of the subdivision within each phase compared to the anticipated timing or the likelihood of future phases being constructed as planned.*

No phasing is proposed.

Studies. *The impacts identified in specific studies or technical reports that were prepared or requested to be prepared in association with the application, and whether the findings and recommendations of these reports, or any modifications or conditions on approval of the application, can mitigate these impacts.*

A Traffic Study and Drainage Report were submitted with this application and sent to the respective viewers for comment. The Drainage Engineer was satisfied, as was the Traffic Engineer. Traffic did have some comments that will need to be addressed at the time of Site Plan Review, primarily dealing with access.

ZONING. *All proposed lots shall be buildable lots according to the existing or proposed zoning district standards, and result in site design and development patterns that meet the Intent and Applicability statements of the existing or proposed zoning district. All parcels not proposed as buildable lots and which are not dedicated to and accepted by the City shall have a clearly defined entity responsible for ongoing maintenance.*

Lot 12 is intended to for open space and stormwater detention. The other 11 lots are all buildable lots, In an LI district, there is no minimum lot size but all buildings shall be setback from property lines adjacent to streets (or internal access ways per 6.2.3.b.3, UDC). Maximum property coverage is 85% . A site plan review will be required before any lot is developed.

Surrounding Development. *The application will not create any undue influence on existing or potential development for adjacent property considering the existing zoning and Comprehensive Plan policies for that property.*

The site is essentially hemmed in by the railroad and flood plain to the north and east. It is adjacent to Rights-of-Way on both the south and the west. It is unlikely that this development will cause any undue influence.

REVIEWING AGENCY AND REVIEWERS COMMENTS:

Engineering Department: Jack Studley

Boundary data and legal descriptions appear in order.

County Planning: John Shepard

Laramie County Planning has no comments on the project at this time. This might be a good time for the City to annex the unincorporated island of railroad right-of-way adjacent to Lot 12 of the project.

Engineering Department: Mark Escobedo *NOTE: All To be addressed at time of Site Plan Review.*

1. A Transportation Impact Analysis (TIA) is required as the proposed development peak-hour trip generation in the P.M. Peak is 78 and the daily vehicle trips is 575, which exceed the threshold volumes of 50 peak-hour trips and 500 daily vehicle trip ends, respectively (ref. Article 3, section 3.1.1.c., UDC). We have received and reviewed a TIA dated May, 2013, by Michael Gostovich, P.E. and offer the

following comments:

- a. Modify the tables and analysis in the TIA to reflect the access location on the Site Plan.
- b. An a.m. and p.m. peak-hour intersection level of service analysis shall be conducted for the study area site intersections and driveways.
- c. The TIA shall provide an evaluation and recommendation for intersection and driveway stopping sight distance and intersection sight distance.

2. Internal Access Ways. Any single block, lot or development site larger than 5 acres shall provide a system of internal access ways to establish connectivity and mobility within the site and coordinate with streets and blocks adjacent to the site (ref. Article 6, Section 6.2.3.b., UDC). Internal access ways shall:

- a. Be designed according to the public street design standards in Article 4, including the standards for vehicle lanes, parking lanes, and streetscape design;
- b. Organize the site into smaller “blocks” between 1 and 4 acres for buildings, open space, and parking; and
- c. Be treated as public streets for interpretation and application of setbacks, build-to lines, curb cuts and driveway access, and building and lot frontage standards. Build-to or setback lines shall be calculated from the outside edge of the sidewalk along internal access ways.

3. Access Management The corner distance should be of sufficient length to allow vehicles to make a right-turn into the access and not significantly impact the vehicles desiring to continue past the driveway (ref. Article 4, Section 4.3.7.a. (5), UDC).

4. Access Separation The minimum access separation from a corner for a Commercial/Industrial Local Street is 100 feet (ref. Article 4, Section 4.3.4.c., Commercial/Industrial, UDC). The minimum separation from other accesses for a Commercial/Industrial Local Street is 30 feet.

5. Access Coordination. The location of access to properties on opposite sides of roadways shall be coordinated so they do not interfere with one another (ref. Article 4, section 4.3.7.e., UDC). Driveway approaches directly opposite each other are desirable. Every effort should be made to coordinate the location driveways and roadways directly opposite of each other.

6. Sight distances. Proper lines of sight shall be maintained at all intersections. Sight distance requirements are a function of speed of the roadway and control points of intersecting streets. The sight triangle shall be kept free from all obstructions between 2.5 feet and 12 feet above street grades (ref. Article 4, Section 4.3.5.c.4., UDC).

Forestry Department: Randy Overstreet

No right-of-way landscape comments at this point in the process.

Urban Planning: Jim Flesher *NOTE: All resolved with submission of revised map on 6/24/2013.*

1. The width of the 40' access easement is unclear at Happy Jack. The Lot 2 side is 20.73' (L1) but the width on the the Lot 3 side is unclear.
2. Change "2010" to "2013".
3. Move Lot 3 label so it doesn't cover easement info.
4. Remove drainage lines from final plat.
5. Clarify what "F.H. utility easement" refers to.
6. Plat should clarify that direct access onto Happy Jack from Lots 5-8 will not be allowed.

AGENCIES AND REVIEWERS RESPONDING WITHOUT COMMENTS: Engineering-Drainage, Engineering General, GIS/Engineering/Addressing, Fire Department, City Clerk, Metro Planning Office (MPO)

AGENCIES AND REVIEWERS NOT RESPONDING: Laramie County Dispatch, Emergency Management Agency, Building, CenturyLink (formerly Qwest), Cheyenne Light, Fuel & Power, Laramie County Assessor, Laramie County Clerk, Optimum (formerly Bresnan), Police Department, Sanitation

OTHER COMMENTS RECEIVED: None

Encl: Preliminary Plat Map
Final Plat Map
Aerial Map

cc: Owner
Agent/Applicant
File

RESOLUTION NO. _____

ENTITLED: "A RESOLUTION AUTHORIZING THE MAYOR AND THE CITY CLERK TO SIGN A FINAL PLAT FOR TETON BUSINESS PARK, A REPLAT OF LOTS 1 THRU 4, INCLUSIVE, BLOCK ONE, CLASSIC SUBDIVISION, CHEYENNE, WYOMING (LOCATED AT THE NORTHEAST CORNER OF THE INTERSECTION OF WESTLAND AND OLD HAPPY JACK ROADS).

WHEREAS, Profile Properties, LLC, has subdivided said land in accordance with the statutes in such cases made and provided; and

WHEREAS, Profile Properties, LLC, the owner of the above described land, has caused a subdivision plat of said land to be made, acknowledged, and certified, particularly describing the lots, block, and easements; and

WHEREAS, the above described subdivision plat has been presented to the City of Cheyenne Planning Commission for consideration; the Planning Commission has recommended that said plat be approved by the governing body; and the plat has been duly executed by the Development Office.

NOW, THEREFORE BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, THAT the subdivision described as Teton Business Park, a replat of Lots 1 thru 4, inclusive, Block One, Classic Subdivision, Cheyenne, Wyoming, be and the same hereby is approved and confirmed as presented, and that the Mayor and the City Clerk be and are hereby authorized, empowered, and directed to execute said plat.

PRESENTED, READ AND ADOPTED THIS _____ DAY OF _____, 2013.

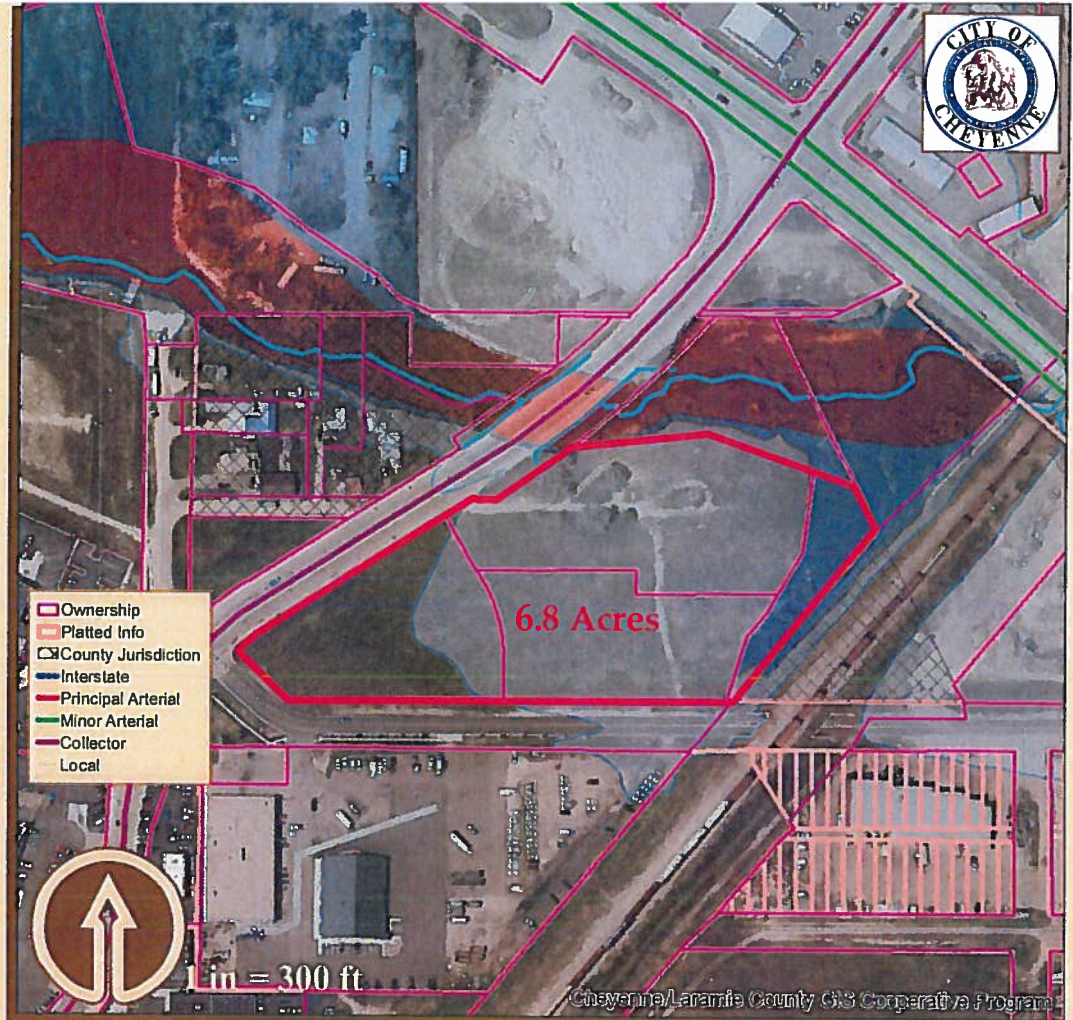
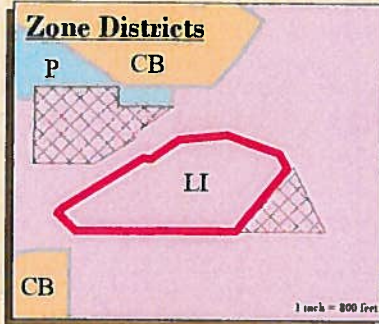
(SEAL)
ATTEST:

RICHARD L. KAYSEN, MAYOR

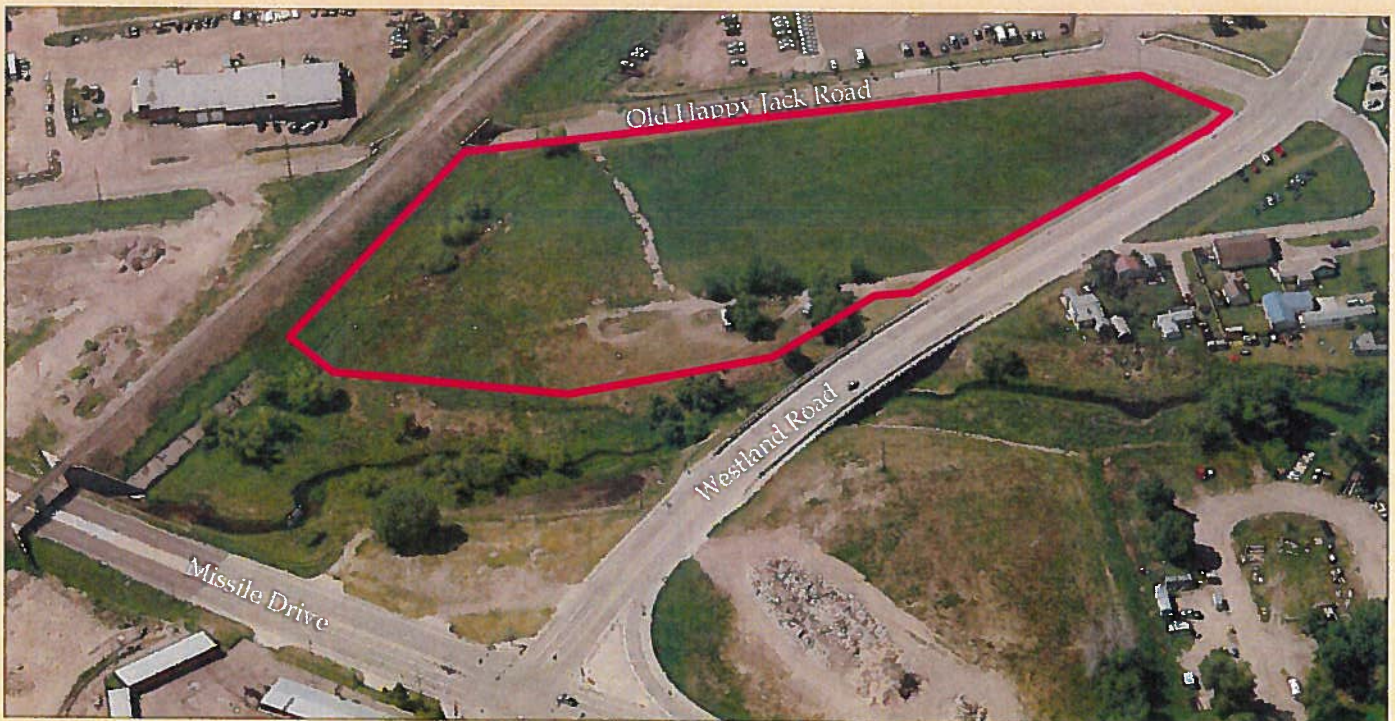
CAROL INTLEKOFER, CITY CLERK

Teton Business Park

UDC-13-00205
Expedited
Preliminary Plat



10 June 2013 BRW



Bird's Eye View looking south (Bing Maps)

Applicant: Profile Properties
Agent: Casey Palma, Steil Surveying Services

This map is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data.

KNOW ALL PERSONS BY THESE PRESENTS, That, Prolog Properties, LLC, a Wyoming Limited Liability Company, owner in fee absolute of Lots 1 through 14, Block 14, Subdivision 14, inclusive, Classic Subdivision, situated in a portion of Section 26, Township 14 North, Range 67 West of the 6th P.M., City of Cheyenne, Laramie County, Wyoming.

Has caused the same to be surveyed, vested, replatted and known as TETON BUSINESS PARK, do hereby declare the subdivision of said land as it appears on this plat, to be their free act and deed and in accordance with their desire and do hereby grant the same to the persons for the purposes indicated herein.

STATE OF WYOMING)
COUNTY OF LARAMIE)

The foregoing instrument was acknowledged before me this _____ day of _____, 2013, by Scott S. Cook, member, Profile Properties, LLC, a Wyoming Limited Liability Company.

- [illegible]

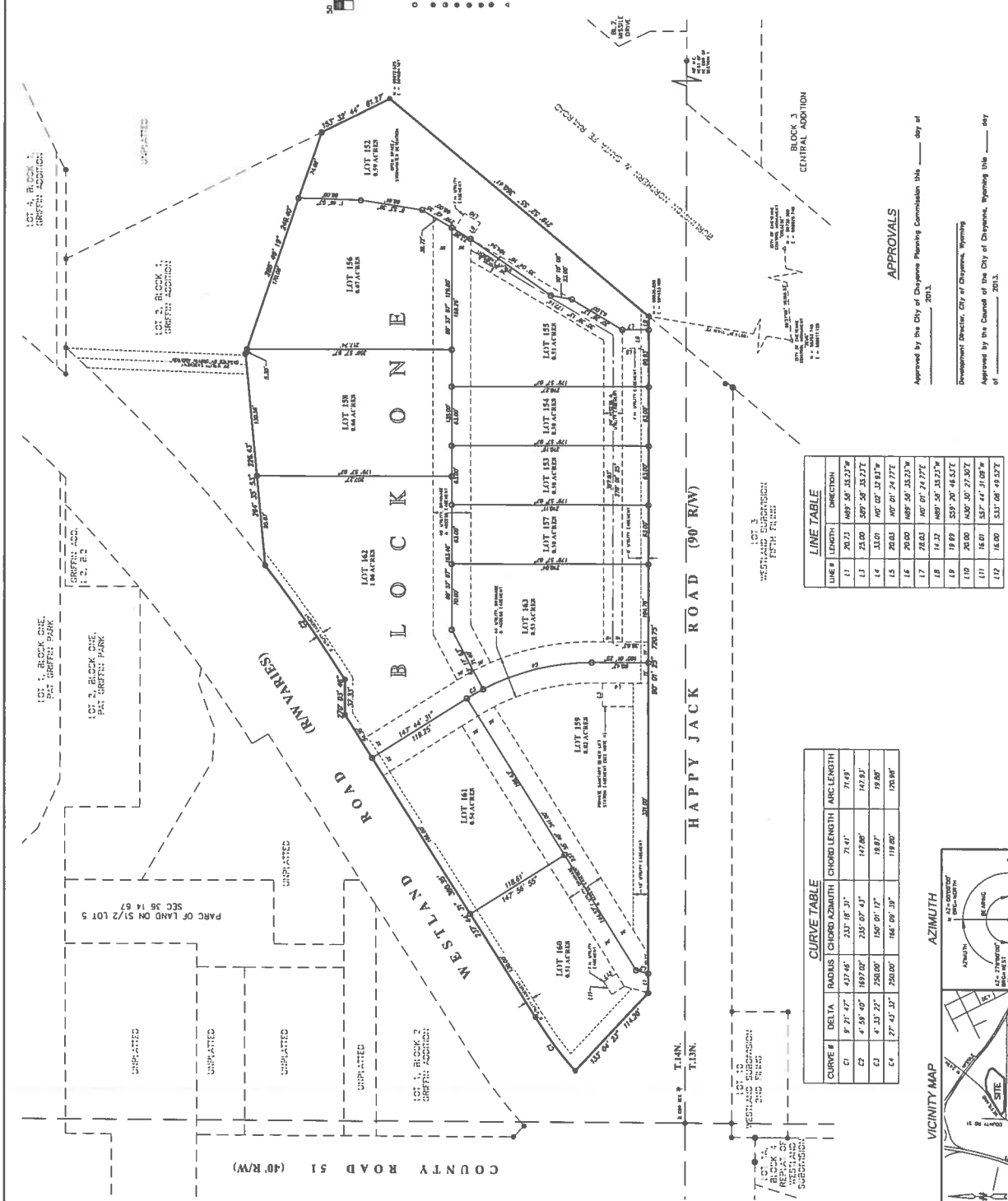
IT IS THE INTENT OF THIS REPLAT TO VACATE ALL INTERIOR LOT LINES AND EASEMENTS OF CLASSIC SUBDIVISION CONTAINED WITHIN THIS REPLAT.

I, Jeffrey B. Jones, Registered Professional Land Surveyor in the State of Wyoming, for and on behalf of Sted Surveying Services, LLC, hereby state, to the best of my knowledge, information and belief, that this map was prepared from field notes taken during an actual survey made by me or under my direct supervision, and that this map correctly shows the results of said survey and that the monuments found or set are as shown.

BEING A REPLAY OF
LOTS 1 THRU 4, BLOCK 1, INCLUSIVE,
CLASSIC SUBDIVISION,
SITUATED IN SECTION 36, T.14N,
R.67W OF THE 6TH P.M.,
CITY OF CHEYENNE,
LARAMIE COUNTY, WYOMING.

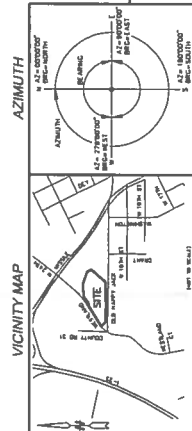
PREPARED MAY 2013

STEIL SURVEYING SERVICES, LLC
PROFESSIONAL LAND SURVEYORS



LINE TABLE		
LINE #	LENGTH	DIRECTION
1.1	20.73	N089°56'55.237W
1.3	25.00	S089°56'55.237E
1.4	31.01	N07°02'17.821W
1.5	20.03	N07°01'24.777E
1.6	20.00	N089°56'55.237W
1.7	28.03	N07°01'24.777E
1.8	14.32	N089°56'55.237W
1.9	19.89	S59°20'46.517E
1.10	20.00	N30°50'27.307E
1.11	16.01	S57°44'31.087W
1.12	16.00	S31°06'49.527E

CURVE TABLE					
CURVE #	DELTA	RADIUS	CHORD AZIMUTH	CHORD LENGTH	ARC LENGTH
C1	9° 21' 47"	437.46'	233° 18' 31"	71.41'	71.49'
C2	4° 55' 40"	1697.02'	235° 07' 43"	147.86'	147.93'
C3	4° 33' 22"	250.00'	166° 07' 12"	18.87'	19.86'
C4	27° 43' 33"	250.00'	186° 09' 39"	119.00'	170.90'



COUNTY ROAD 51 (40' R/W)

HAPPY JACK ROAD (90' R/W)

BLOCK ONE

CURVE #	DELTA	RADIUS	CHORD	ARC LENGTH	ARC LENGTH
C1	9° 21' 47"	423.46'	221.18' 31"	71.46'	71.46'
C2	4° 58' 42"	1883.02'	225.07' 43"	142.80'	142.80'
C3	7° 15' 11"	285.37'	227.44' 31"	112.21'	112.21'
C4	3° 57' 08"	250.00'	159' 47' 05"	172.94'	172.94'
C5	28° 18' 46"	250.00'	245' 31' 32"	122.35'	122.81'

LINE #	LENGTH	DIRECTION
1	20.22	468° 58' 35.217°
2	12.22	465° 18' 45.217°
3	25.00	589° 58' 35.217°
4	25.00	465° 01' 24.777°
5	20.00	469° 07' 24.777°
6	20.00	469° 07' 24.777°
7	20.00	469° 07' 24.777°
8	14.32	469° 58' 35.217°
9	18.89	553° 20' 46.837°
10	20.00	465° 30' 27.807°
11	18.00	553° 44' 21.09°
12	18.00	553° 44' 21.09°



PLANNING RECORD

WESTLAND SUBDIVISION
1979-1980

APPROVALS

Approved by the City of Cheyenne Planning Commission this _____ day of _____ 2013.

Approved by the City of Cheyenne, Wyoming this _____ day of _____ 2013.

Approved by the Council of the City of Cheyenne, Wyoming this _____ day of _____ 2013.

ATTEST: _____

STATE OF WYOMING
COUNTY OF LARAMIE

THE FOREGOING INSTRUMENT WAS ACKNOWLEDGED BEFORE ME this _____ day of _____ 2013, by _____, a Wyoming Limited Liability Company.

Notary Public, Laramie County, Wyoming

ACKNOWLEDGEMENT

NOTES

LEGEND

VACATION STATEMENT

CERTIFICATE OF SURVEYOR

QUESTON BUSINESS PARK

BEING A REPLAT OF LOTS 1 THRU 4, INCLUSIVE, CLASSIC SUBDIVISION, SITUATED IN SECTION 36, T14N, R1E, CITY OF CHEYENNE, WYOMING, LARAMIE COUNTY, WYOMING.

PREPARED MAY 2013

STEEL SURVEYING SERVICES, LLC

PROFESSIONAL LAND SURVEYORS

1409 WEST 15TH STREET, SUITE 200
CHEYENNE, WYOMING 82002

PH: 307.634.7273 FAX: 307.634.7274

WYOMING BOARD OF LAND SURVEYORS

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